

Maamarei Mordechai

הסבר לפי ממש פשוט

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Moshe provides a deeper meaning behind Kashrus.

לֹא תֹאכַל כָּל-תוֹעֵבָה:

"You shall not consume every abomination." (Devarim 14:3).

Why does Moshe start so bluntly? Does it simply refer to the creepy crawlies or is there another message?

One of the fundamental principles of Torah study is that the Torah does not repeat itself without purpose. When the Torah presents a commandment a second time, the repetition itself demands explanation. The laws of kosher animals here (ibid 14:3–21), appear at first glance to be almost identical to the laws already given earlier (Vayikra 11:1–47). The repeats the signs and that certain birds are forbidden. Why does Moshe repeat them?

When the Torah introduced kashrus previously, it said, Hashem told Moshe and Aharon, "Speak to Bnei Yisroel saying," (Ibid 11:1). Aharon was instructed to teach as well, because the set of laws also dealt with purity and impurity, like tzaraas and discharges. Here, the Torah begins by telling Bnei Yisroel they are Hashem's children and they must carry themselves in such a manner. (Devarim 14:2). Moshe felt it important to establish Bnei Yisroel's identity first. The order is significant. A distinction becomes clear when examining the the conclusion of each passage.

After the laws of forbidden animals, Vayikra concludes with, "I am Hashem who brought you up from the land of Egypt to be your Lord, you shall therefore be holy, for I am holy." (Vayikra 11:45). Hashem redeemed the nation and therefore, they must live differently. Here, however, it does not mention the reason based on gratitude, but "Hashem has chosen you to be His treasured nation." (Devarim 14:2). While the emphasis in Vayikra is trying to emulate Hashem because of gratitude, here the emphasis is on how special Bnei Yisroel are, so they should act like they are special.

This reflects a broader theme throughout Sefer Devarim. Moshe's final address is not primarily about reminding them of their journey. Nor is it about leaving some final instructions to round out 613. It is about teaching Bnei Yisroel how to thrive and be holy in a mundane and hard world.

This difference in focus explains why so much of Vayikra's law detailed purity legislation, while it disappears from our parsha. While the Torah was concerned with purity status before, here Moshe is focused on the identity of the person eating. Previously, it was do not eat this because you may become unclean. Here it is, eat clean because you are special and only pure things deserve to enter your body.

To'eva - abomination is often used for practices associated with idolatry and the nations surrounding Eretz Yisroel. (Ibid 7:25–26; 12:31; 18:9–12). Moshe presents the dietary laws as part of Klal Yisroel's separation from foreign ways. The diet makes Bnei

Yisroel different and special. Even today, no nation keeps dietary laws like Jews do. Even those that try fall short.

The Torah previously prohibited eating an animal that dies naturally. (Vayikra 11:39). The Torah adds here, "You may give [the carcass] to the stranger within your gates, that he may eat it, or you may sell it to a foreigner." (Devarim 14:21). Moshe addresses the practical reality of life in the Land. The question is not only what is forbidden, but what should be done with what is forbidden. And more importantly, it is how Bnei Yisroel are special and different than surrounding nations.

This explains why Moshe lists specific kosher animals before giving the general rule. "These are the animals that you may eat: the ox, the sheep, the goat, the deer, the gazelle." (Ibid 14:4-5). Providing the signs showed that the point was much more ceremonial and covenantal. Listing the animals, here, is much more practical. Before the Torah taught the concepts and fundamental. Now Moshe gave them application in the real world; the real world they are about to live in. The generation entering the Land needed to know how Torah applies to real life in a land filled with fields, forests, animals, and commerce. There will be strangers and visitors that enter the land, and Bnei Yisroel will see customs when they visit their neighbors. It is easy to toil over concepts while basking next to the Mishkan and eating manna from heaven. It is entirely different to keep kosher laws against competing customs, choices, and financial concerns. Non-kosher may look more enticing and may be cheaper. At that point, it is a lot harder to choose kosher when one merely knows about hooves and ruminants. However, knowing that there are so many choices—the ox, cow, goat, sheep, gazelle, deer, buffalo makes it much easier to choose correctly.

There are two stages in a person's relationship with Hashem. The first is redemption and gratitude. Hashem took us out of bondage, gave us life, protects us from harm, clothes us, give us community and education and talents. Therefore, in gratitude we serve Hashem. But redemption and gratitude alone are not enough. It can go only so far and eventually the person feels that the tally is completed and repayment provided. The second stage, the one that makes it last forever, is a relationship. Bnei Yisroel are Hashem's children. Hashem did not just free Bnei Yisroel to put them in other bondage. Hashem adopted Bnei Yisroel. Klal Yisroel is not holy because they do holy things. They should do holy things because they are intrinsically holy.

There is one further consideration. The purpose of the mitzvos is not merely to separate Bnei Yisroel from forbidden things or from their neighbors. It is to remind them who they are. Every meal becomes a declaration of a relationship to Hashem. Every choice becomes an act of loyalty. Every ordinary moment becomes an opportunity to live as the people whom Hashem has chosen. The laws of kashrus did not change between Vayikra and Devarim. But the message surrounding them changed. Vayikra teaches how a redeemed people becomes holy. Devarim teaches how a holy people preserves its relationship with Hashem. And that is why Moshe, standing before the people on the edge of Eretz Yisroel, begins the laws of kosher animals not with a list of permitted foods, but with a reminder. "You are children of Hashem, your Lord."